



FRAME OF SUIT

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INSTITUTION OF SUIT

Order 4, section 26

Section 26: 1. every suit shall be instituted by the presentation of a plaint

2. in every plaint, facts shall be proved by affidavit.

Order 4: rule 1 - suit to be commenced by plaint

Suit shall be instituted with the presentation of a plaint in duplicate to the court/officer appointed in that behalf

Plaint to comply with rules of Order 6,7

Plaint shall not be deemed to be duly instituted unless it complies with above rules.

Rule 2- register of suits



Rule 1: every suit as far as practicable shall be framed so as to offer ground for final decision upon subjects in dispute and to prevent future litigation concerning them.

Object? It is interest of state that there should be an end to litigation.

Rule 2: suit to include the whole claim

FRAME OF SUIT — ORDER 2

ORDER 2 RULE 2 — SUIT TO INCLUDE THE WHOLE CLAIM

1. every suit shall include the whole of claim which plaintiff is entitled to make in respect of COA but plaintiff may relinquish any portion of his claim in order to bring the suit within jurisdiction of any court.
2. where plaintiff omits to sue in respect of, or intentionally relinquishes, any portion of his claim, he shall not afterwards sue in respect of portion so omitted or relinquished.
3. a person entitled to more than 1 relief in respect of same COA may sue for all or any of such reliefs but if he omits except with the permission of the court, to sue for all such reliefs, he shall not afterwards sue for any relief so omitted.

Object? – intended to deal with the vice of splitting up of claims.

Eg- A V. B – non-payment of rent for year 2022,2023,2024. only rent for 2024 claimed.

Rent for 2023 due – rs. 8000 – to bring in jurisdiction, P gives up 500 rs. Sues only for 7500/-

GURBUX SINGH V. BHOORALAL 1964 SC

P executed a pro-note in favour of GS. Sued later for declaration that pro-note was not binding on him as it was without consideration and obtained by fraud.

Did not seek cancellation of pro-note/injunction against enforcement.

Suit was dismissed.

Plaintiff instituted a fresh suit for injunction.



THREE CONDITIONS OF O2R2 –

1. previous and subsequent suit arise from the same cause of action
2. in respect of that COA, plaintiff is entitled to more than 1 relief/CLAIM.
3. without leave of the court, P omitted to sue for relief/CLAIM for which second suit is filed.

PRINCIPLES

NABA KUMAR V. RADHASHYAM

O2R2 is intended to deal with the “vice of splitting up of claims.”

Suit must include the whole of the claim & if he omits to sue for any relief that the COA would allow him, cannot claim it afterwards.

Test as to wther the second suit is barred or not? —

1. claims in second suit is founded on a cause of action which was the foundation of the former suit. If evidence to support two claims is different then cause of action is different.

2. whether the plaintiff could have and should have claimed in the first suit the relief which he claims in the second suit.

JOINDER OF CLAIMS

Rule 3- cause of action joined.
Jurisdiction from the aggregate amount.

Rule 6- if joinder embarrasses or delays trial.

Rule 7- objections as to misjoinder- earliest possible opportunity, at or before settlement of issues.



EG

X enters into a contract with Y for supply of 1000 bags of cement. Y supplies only 300 bags of which 100 are defective. X files a suit only for damages on account of defective 100 bags. Two months later, he files another suit for non-supply of the remaining 700 bags.

Is the second suit maintainable?

HW

Bharat Petroleum V. AT Construction 2023 SC